

by issuing an order to its members to join a march to the Parliament at the end of this month. "Those absent will be considered as supporters of the stand of the Government and we will be constrained to strike off their names and cancel all facilities provided by the bar, which includes chambers and seats," says Rajiv Khosla, president of the Delhi Bar Association, in a circular sent to the members. "The aggrieved sections should have come forward with their opposition during the lawmaking process. Once Parliament has taken a decision, it is improper to stop its execution. If the executive wants to make any amendments, it should come back to Parliament instead of withholding its enforcement," says E.M.S. Natchiappan, Rajya Sabha MP of the Congress.

Selective notification of an act is a tactic successive governments have employed, albeit rarely. In 1981, the issue of the non-enforcement of certain sections of the Constitution (44th Amendment) Act, which deleted Right to Property from the list of fundamental rights, came up before a five-judge bench of the Supreme Court. The majority judgement said that it was permissible to Parliament to vest in an outside agency the power to bring a constitutional amendment into force. "But we find ourselves unable to intervene in a matter of this nature by issuing a mandamus to the Central Government, obligating it to bring the provisions of Section 3 into force. The Parliament have left to the unfettered judgement of the Central Government the question as regards the time for bringing the provisions of the 44th Amendment into force, it is not for the Court to compel the

Government," the judgement said.

Two judges dissented from this part of the ruling. One of them, A.C. Gupta, said in his dissent note: "I do not think that Section 1(2) can be construed to mean that the Parliament left it to the unfettered discretion or judgement of the Central Government when to bring into force any provision of the Amendment Act. After the Amendment Act received the President's assent, the Central Government was under an obligation to bring into operation the provisions of the Act within a reasonable time; the

“ It is unfortunate that legality is taking precedence and morality a back seat and the Acts are not being enforced completely.”

J.S. VERMA, *Former Chief Justice*



“ In the absence of adequate scrutiny of legislation, the Parliament is giving more discretion to the Executive.”

C.V. MADHUKAR, *Director, PRS Legislative Research*

“ The Government by not notifying the Acts passed by Parliament is displaying its utter contempt for the will of the people.”

BINDRA KARAT, *CPI(M) Politburo member*



power to appoint dates for bringing into force the provisions of the act was given to the Central Government obviously because it was not considered feasible to give effect to all the provisions immediately."

In the case of these Acts, the executive is given powers to enforce them. "It is unfortunate that legality is taking precedence and morality is taking a back seat everywhere and the acts are not being enforced completely," says former chief justice J.S. Verma. The previous NDA regime took to the partial notification route only in four bills—The Chemical Weapons Convention Act 2000, The Energy Conservation

Act 2001, The Haj Committee Act 2002 and The Patents Act 2002. But the UPA government has turned this into a fine art. Of the 159 acts completely notified from 1995 to 2008, 144 were enforced with a single notification. Of these, 102 were passed in six months and 31 in an year. Only 26 acts during the period took more than a year, nine of which belonged to the period after the UPA came to power in 2004. The UPA, since 2004, has partially notified nine key legislations and has not notified three legislations at all, making it an easy way to veto Parliament.

So much so that sometimes even ministers are caught off guard. Environment and Forests Minister Jairam Ramesh was taken by surprise when activists alerted him about a Gazette notification issued by his own ministry on October 26, last year. The notification had taken 190 species of plants out of the protective sphere of the law on biodiversity, amid allegations that it was done to enable biological resources to be plundered with ease. Early this month in Bangalore when A.S.

Anand, the chairman of Karnataka's Organic Farming Mission, told Ramesh about the notification, the minister called up his mandarins to find out the truth from. "I will tender a public apology if what you say is true. If what I say is true, you should resign from your job," Ramesh told Anand.

As bad as the economic fallout is, the issue has turned into something worse: a test for parliamentary democracy. The executive, by taking the acts passed in the Parliament through a blind alley, is outweighing the prominence of the Parliament. Only concrete efforts and good intentions, not just apologies, can redeem the situation. ■